



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd
Subject: UDC-22-00133 / Sweetgrass Drive Roundabout Vacation
Date: May 9, 2022

Background:

The item for consideration is a *Street Vacation*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 5/9/2022
- Public Services Committee 5/17/2022
- Second reading 5/23/2022
- Public Services Committee 6/7/2022
- Third and final reading 6/13/2022

Planning Commission Recommendation:

The Planning Commission heard this item at their May 2, 2022 meeting and recommended the Governing Body approve this application by a unanimous vote.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE VACATING A PORTION OF THE SWEETGRASS DRIVE ROUNDABOUT, SWEETGRASS, 1ST FILING, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING (LOCATED ALONG SWEETGRASS DRIVE, BETWEEN COLLEGE DRIVE AND MURRAY ROAD)”.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City Right-of-Way (ROW) property described as a 3,410 square foot portion of the west leg of the Sweetgrass Drive Roundabout, Sweetgrass, 1st Filing, City of Cheyenne, Laramie County, Wyoming is hereby vacated as shown on the attached Vacation Map.

Section 2. The vacation of the 3,410-square feet of undeveloped ROW is in the best interest of the City of Cheyenne and its residents.

Section 3. That said vacated right-of-way shall revert to the adjacent property owners pursuant to Wyoming State Statutes.

Section 4. The said vacated land shall have no easements, reservations or restrictions of record unless shown on the attached Vacation Map.

Section 5. The City Clerk is directed to record this ordinance, together with the Vacation Map, with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming.

Section 6. That the City Engineer’s office is directed to change the Official City Map to reflect this vacation and the Official Zoning Map designating the vacation request for the properties as indicated as zone Sweetgrass PUD (Ordinance 4286 and subsequent amendments).

Section 7. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 8. That this ordinance shall be in full force and effect upon its publication.

FIRST READING: _____

SECOND READING: _____

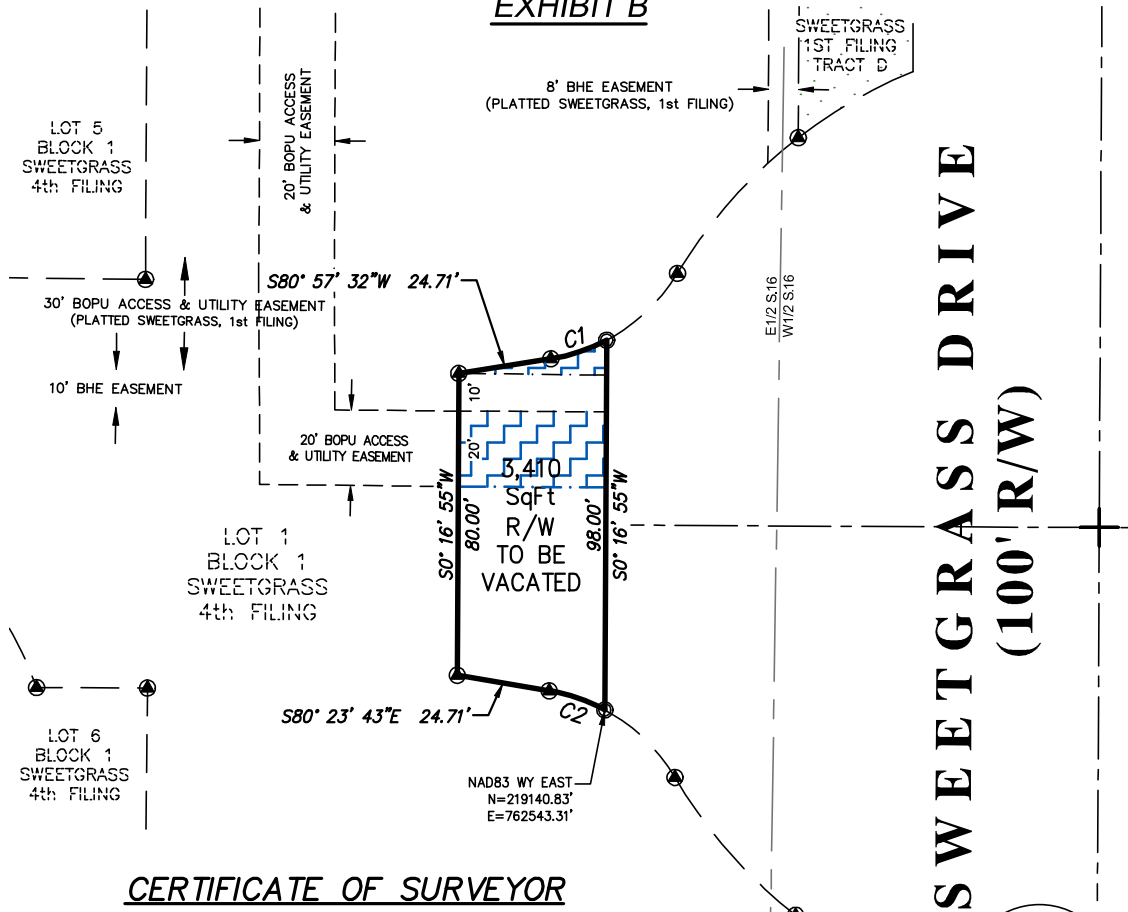
THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

EXHIBIT B



CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, Licensed Professional Land Surveyor in the State of Wyoming, for and on behalf of Steil Surveying Services, LLC, hereby state that this map was prepared from recorded data of official recorded plat maps; and that this map correctly shows all dimensional details to the best of my knowledge, information and belief,

NOTES

- BASIS OF BEARINGS:
WYOMING STATE PLANE COORDINATES, EAST | NAD83-2011
GRID DISTANCES. SITE COMBINATION FACTOR = 0.999665203.
- PUBLIC RIGHT-OF-WAY VACATED AS SHOWN SHALL BE STATUTORILY CONVEYED TO SOLE ADJACENT LANDOWNER. (LOT 1, BLOCK 1, SWEETGRASS, 4th FILING)

ASSESSMENT OWNERSHIP OF SAID LOT 1, BLOCK 1, (COMMON OWNERSHIP) SHALL BE INCREASED BY THE TOTAL AREA VACATED.
- ALL DIMENSIONS SHOWN HEREON ARE BASED ON RECORD PLATS OF SWEETGRASS TO THE CITY OF CHEYENNE (FORTH FILING)
- "BOPU UTILITY & ACCESS EASEMENT(S)" WITHIN THE VACATED AREA, AS SHOWN AND DESCRIBED HEREON, ARE HEREBY GRANTED TO THE BOARD OF PUBLIC UTILITIES OF THE CITY OF CHEYENNE (BOPU), THEIR LEGAL SUCCESSORS AND/OR ASSIGNS, FOR INSTALLATION, MAINTENANCE, REPAIR, ALTERATION AND OPERATION OF DOMESTIC WATER AND SANITARY SEWER MAINS/PIPELINES AND FIRE HYDRANTS (COLLECTIVELY "FACILITIES"). THIS GRANT OF EASEMENT IS SUBJECT TO THE TERMS AND CONDITIONS OF THOSE ABUTTING BOPU EASEMENTS PLATTED WITH SWEETGRASS, 4th FILING.

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FILING RECORD

CURVE TABLE					
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STAMPED "SSS P.L.S. 5910"
- FOUND 1½" ALUMINUM CAP
STAMPED "SSS P.L.S. 5910"
- BOPU UTILITY & ACCESS
EASEMENT AREA(S)

ORD# _____

R/W VACATION MAP

FOR

ALL OF THAT 40' RIGHT-OF-WAY,
BLOCK 1,
SWEETGRASS, FORTH FILING,
CITY OF CHEYENNE,
LARAMIE COUNTY, WYOMING.

PREPARED January, 2022





A COMMUNITY OF CHOICE

Planning and Development Department

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(Phone) 307-637-6282 (Fax) 307-637-6366

CITY OF CHEYENNE PLANNING COMMISSION

MAY 2, 2022

STAFF REPORT

FILE: UDC-22-00133: Sweetgrass Drive roundabout Vacation

REQUEST: To vacate the west leg of the Sweetgrass Drive roundabout right-of-way originally dedicated with Sweetgrass, 1st Filing and lying adjacent to Lot 1, Block 1, Sweetgrass 4th Filing between College Drive and Murray Road

LOCATION: West of Sweetgrass Drive, between College Drive and Murray Road

APPLICANT: Sweetgrass Land Co., LLC

AGENT: Palma Land Planning

PURPOSE: To give more control over the entry to the commercial development benefitting therefrom

PREPARED BY: Seth Lloyd – Planner II - Development



RECOMMENDED MOTION:

Move to **approve** the vacation of the west 39 feet (3,410 square feet) of the Sweetgrass Drive roundabout, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.1.4 Street Vacation
- PlanCheyenne

BACKGROUND:

The Goodnight Trail and Sweetgrass Drive roundabouts serve as the entry points for a commercial space adjacent to College Drive within the Sweetgrass PUD. The owner of the commercial land has indicated the development would be better served by including more of the legs of the roundabout within the common parking and open space parcel. The vacation would allow the owners to have more control over the access point and decrease the City's required maintenance. The vacation would not adversely affect the ability to access the commercial parcel.

Note: due to the similarities with the Goodnight Trail roundabout, this staff report is nearly identical to the report for UDC-22-00124.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Area proposed for vacation	Mixed-use Commercial	Sweetgrass PUD	Roundabout entry
North	Mixed-use Commercial	Sweetgrass PUD	Parking and open space
South	Mixed-use Commercial	Sweetgrass PUD	Parking and open space
East	Mixed-use Commercial	Sweetgrass PUD	Roundabout
West	Mixed-use Commercial	Sweetgrass PUD	Parking and open space

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Street Vacation, the Commission must make the following findings required in UDC 2.2.4.d. A detailed analysis is below:

1) The vacation meets the purposes, intent, and applicable standards of Article 4. (UDC 2.1.4.d.1)

Article 4 of the Unified Development Code is generally silent on right-of-way vacations of roads outside of downtown. Article 4, Section 4.1.1.a of the UDC seeks to "ensure that all City blocks and lots are served by necessary infrastructure services, including utilities, transportation, storm drainage, public safety, and community facilities, but recognize that necessary service levels may differ based on the context, character, and intensity of development." The right-of-way for

vacation does not serve as a connection, and utilities utilizing this right-of-way will have easements provided.

Vacation of the property **complies** with this criterion.

- 2) The ability of all existing and potential future development on adjacent lots to meet all applicable standards for development in the existing zoning district, including other development options in the event that any specific development proposed in association with the vacation is not executed after approval (UDC 2.1.4.d.2).**

The proposed vacation is minor and does not substantively change the public-private interface. The right-of-way was already included as part of the development plan on the adjacent parcel (as the right-of-way landscaping and access are typically found on site plans for development at any location in the City). Any future development on the parcel would be required to address this area (whether private property or public right-of-way).

Vacation of the property **complies** with this criterion.

- 3) The vacation reflects sound planning and urban design principles with respect to existing potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities (UDC 2.1.4.d.3).**

The proposed vacation does not eliminate any publicly dedicated connections and all public travel will be retained in the remaining right-of-way. The area to be vacated has utilities, but a utility easement is proposed to be included with the vacation.

Vacation of the property **complies** with this criterion.

- 4) The application meets the public interest, and is not otherwise prohibited by other city, state, or federal laws (UDC 2.1.4.d.4).**

The portion of the right-of-way proposed to be vacated only services one owner (who has petitioned for the vacation). All north-south public travel is maintained in the remaining right-of-way. Allowing the vacation would allow the landowner greater flexibility in the future and would relieve the City of some maintenance.

Vacation of the property **complies** with this criterion.

- 5) The review and recommendations of other reviewing bodies (UDC 2.1.4.d.5).**

The Metropolitan Planning Organization recommended that the entire western splinter island be within right-of-way. However, the proposed splinter island already extends into private property, and the entirety of the splinter island east of (and including) the public sidewalk will still be in the right-of-way.

Vacation of the property **complies** with this criterion.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

PlanCheyenne designates this area as Mixed-use Commercial. The Plan also encourages responsiveness to market demands and the responsible extension of infrastructure. As the infrastructure located in this roundabout leg is not required for effective maintenance of Sweetgrass Drive, vacation would be more responsible for City maintenance. The vacation of this area will not adversely impact the ability for this property to be accessed for commercial uses, and may allow the property more flexibility.

STAFF REVIEW:

Staff review is covered by review criterion #5 (above).

CONCLUSION:

The application meets all the review criteria as filed.

ALTERNATIVES:

1. Recommend approval of the vacation as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the vacation subject to conditions or modifications.
3. Recommend denial of the vacation based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the vacation until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

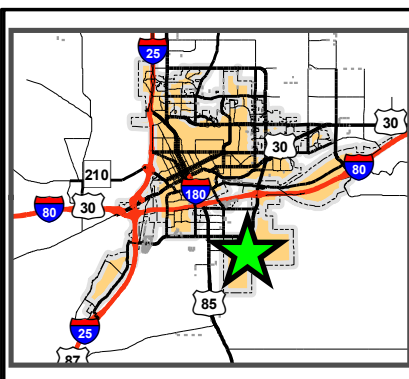
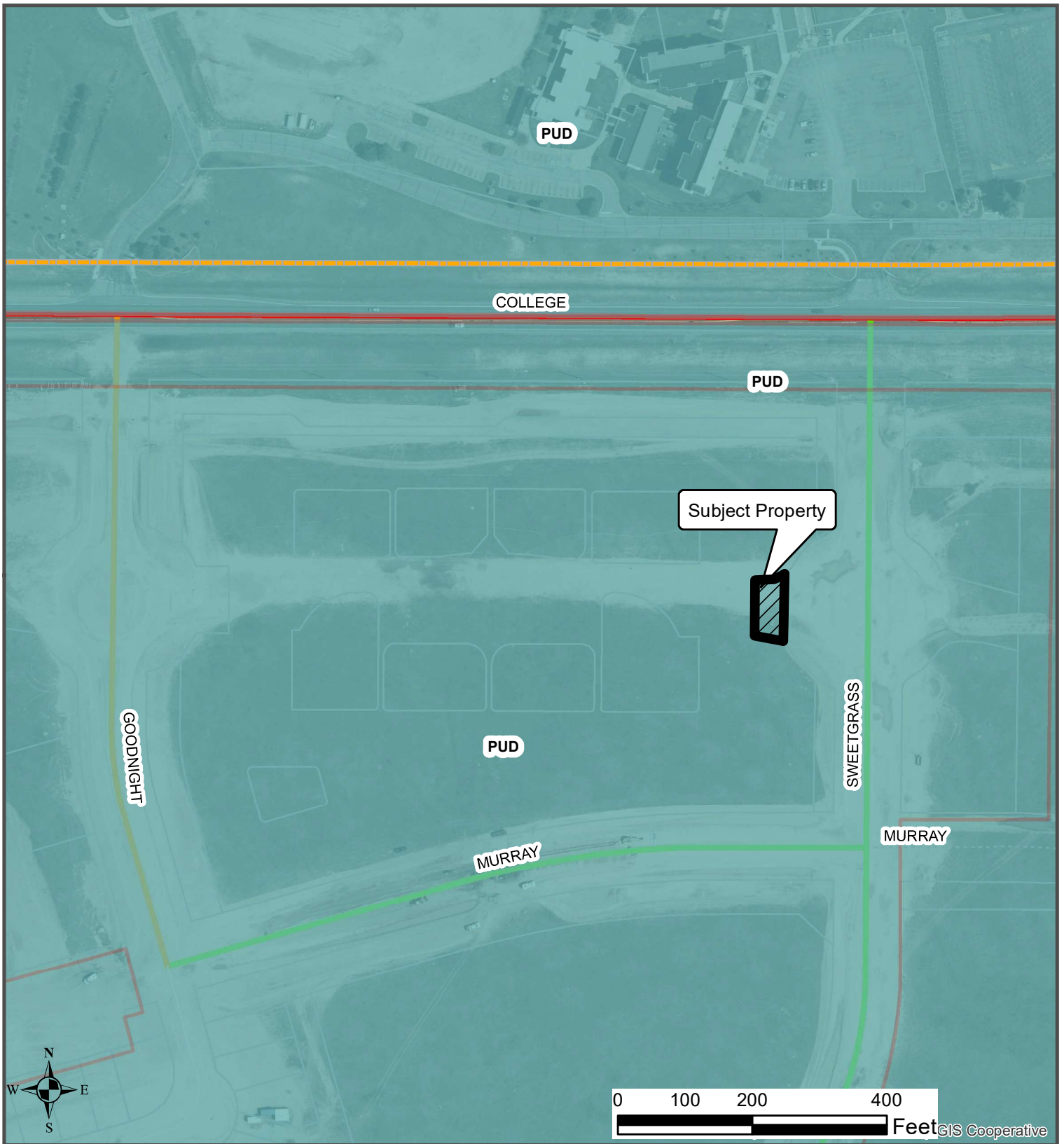
In the event that the Commission acts contrary to staff's recommendation or modifies recommended conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval of the vacation.

ATTACHMENTS:

1. Zoning Map
2. Land Use Plan Map
3. Application
4. Formal Petition
5. Applicant-provided Vacation Map

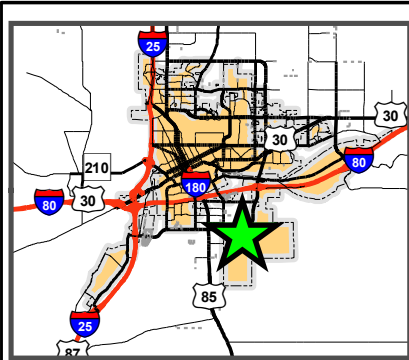
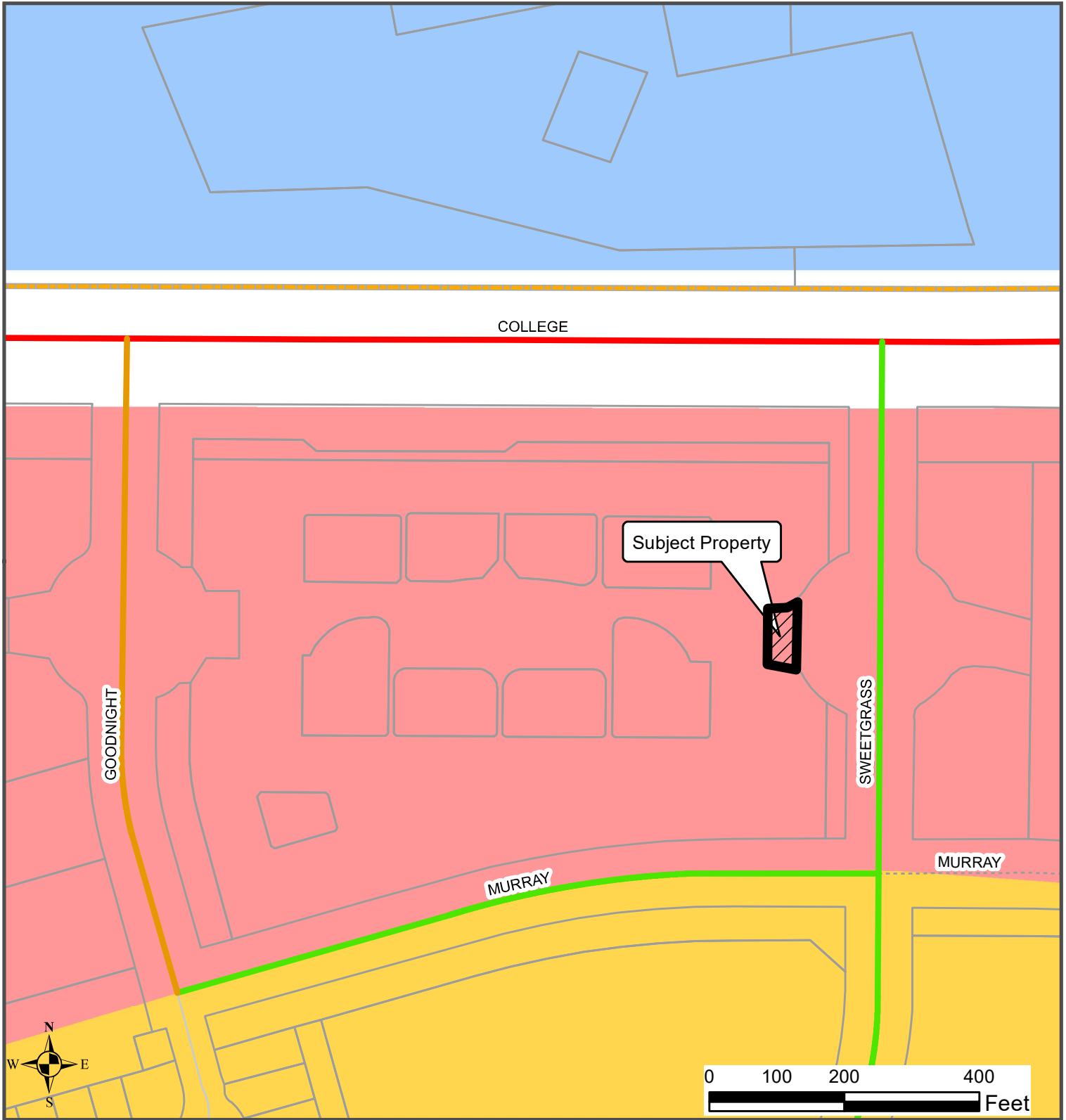


Attachment 1: Zoning Map UDC-22-00133

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

Nov19_CityLimits	A-1 / Agricultural and Rural Residential
Interstate	A-2 / Agricultural
Principal Arterial	AG / City Agricultural
Minor Arterial	MUR / Mixed Use Residential Emphasis
Major Collector	CBD / Central Business District
Minor Collector	CB / Community Business
Local	NB / Neighborhood Business
Private	MU / Mixed Use - County
Platted not built	MUB / Mixed Use Business Emphasis
HR / High Density Residential	MUE / Mixed Use Employment Emphasis
MR / Medium Density Residential	HI / Heavy Industrial
LR / Low Density Residential	LI / Light Industrial
NR-2 / Neighborhood Residential - Med. Density	P / Public
NR-3 / Neighborhood Residential - High Density	AD / Airport District
AR / Agricultural Residential	PUD / Planned Unit Development
	X / Exempt



Attachment 2: Land Use Map UDC-22-00133

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Legend

- | | | |
|--------------------|------------------------------|---------------------------|
| Nov19_CityLimits | Agricultural/Rural | Industrial |
| Interstate | Rural Residential | Central Business District |
| Principal Arterial | Urban Transition Residential | Community Business |
| Minor Arterial | Urban Residential | Public and Quasi-Public |
| Major Collector | Mixed-Use Residential | Military/Federal |
| Minor Collector | Mixed-Use Commercial | Open Space and Parks |
| Local | Mixed-Use Employment | |
| Platted not built | | |
| Private | | |
| Ownership | | |

Planning and Development: Vacation of Right-of-way

Submission date: **30 March 2022, 4:59PM**
Receipt number: **5**
Related form version: **9**

General Information

Applicant Name: **Sweetgrass Land Co., LLC c/o Annaliese Weiderspahn**

Applicant Address: **1825 Campstool Road**

Applicant City: **Cheyenne**

Applicant State: **WY**

Applicant Zip Code: **82007**

Applicant Phone: **(307) 222-1006**

Applicant Email: **info@SweetgrassWY.com**

Representative Name: **Palma Land Planning**

Representative Address: **1102 W. 19th Street**

Representative City: **Cheyenne**

Representative State: **WY**

Representative Zip Code: **82001**

Representative Phone: **(307) 996-8281**

Representative Email: **Casey@PlanDesignWY.com**

Who is the primary contact regarding this application? **Representative**

Project Location (Street Address or General Location): **Lot 1, Block 1, Sweetgrass, 4th Filing (Adjacent R/W)
[Sweetgrass Village Center]**

Total Area Proposed for Vacation

8,194

Application-Specific Information

Written Statement

Due to R/W use agreement(s) & relating to constructed drainage improvements (inlets and stormwater conveyance) this plat proposes to vacate the "extensions" of the roundabout "arms" - placing all drainage facilities on private land with easements for City access if required. (BOPU facilities covered by existing easements and noted to remain on exhibits)

Formal Vacation Petition

[Petition_R-W Vacation_SG-VillageCenter-Roundabouts_SIGNED-033022.pdf.pdf](#)

A pre-application meeting is not required. If a meeting was held, please indicate the date of the pre-application meeting.

08/25/2021

Upload any pre-application meeting notes or summaries relevant to this proposal.

Attach Franchise Utility approval letters from all affected utilities. Failure to provide this information could result in delay of application review.

[16175J_Roundabout Vacation-EXHIBIT A.pdf](#)
[16175J_Roundabout Vacation-EXHIBIT B.pdf](#)

Signature / Certification

Applicant Signature

Name of signatory: Casey L Palma, AICP



[Uploaded signature image: CPalma_PLP-Sig.png](#)

Please enter an email address for an email receipt.

Casey@PlanDesignWY.com

STATE OF WYOMING)
)
COUNTY OF LARAMIE) SS

PETITION FOR VACATION (CITY)

TO: **THE HONORABLE MAYOR PATRICK COLLINS**
 AND MEMBERS OF THE CITY COUNCIL, CITY OF CHEYENNE, WYOMING

KNOW ALL BY THESE PRESENTS that the undersigned, Sweetgrass Land Co. LLC,
a Wyoming Limited Liability Company, is the owner of the following described real property:

All of Lots 2 thru 10, Block 1, Sweetgrass, 4th Filing

and

All of that undivided interest in Lot 1, Block 1, Sweetgrass, 4th Filing

all of which properties are adjacent to the following right-of-way or land:

Lot 1, Block 1, Sweetgrass, 4th Filing

a portion of which the undersigned owners hereby petition to be vacated by the City of Cheyenne.
The above-named owners constitute the owners of all property abutting the portion of dedicated
right-of-way or land for which vacation is requested.

THAT the portion of right-of-way or land which the undersigned owners request to be vacated
includes the following sections of dedicated streets and alleys:

±4,784 square feet of Goodnight Trail roundabout extension (see attached Exhibit A)
And ±3,410 square feet of Sweetgrass Drive roundabout extension (see attached Exhibit B)

adjacent to:

Lot 1, Block 1, Sweetgrass, 4th Filing

The undersigned petitioners hereby respectfully request that said portions of dedicated right-of-way
or land be vacated by the City of Cheyenne and that title to the vacated area revert to the dedicator
and adjacent property owner(s) in accordance with Wyoming state statute and established policy.

An accurate map, prepared by:

Jeffrey B. Jones, P.L.S., of Steil Surveying Services, LLC

a Professional Land Surveyor licensed in the State of Wyoming, accompanies this petition and a
plat of all the real property and right-of-way described herein has previously been filed with the
County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming.

REMAINDER OF PAGE INTENTIONALLY BLANK
SEE FOLLOWING PAGE(S) FOR SIGNATURE AND ATTEST

Respectfully Submitted:

Annaliese Wiederspahn

Annaliese Wiederspahn as Manager

PRINT NAME

TITLE

for Sweetgrass Land Co. LLC

ATTEST:

Machel Allen

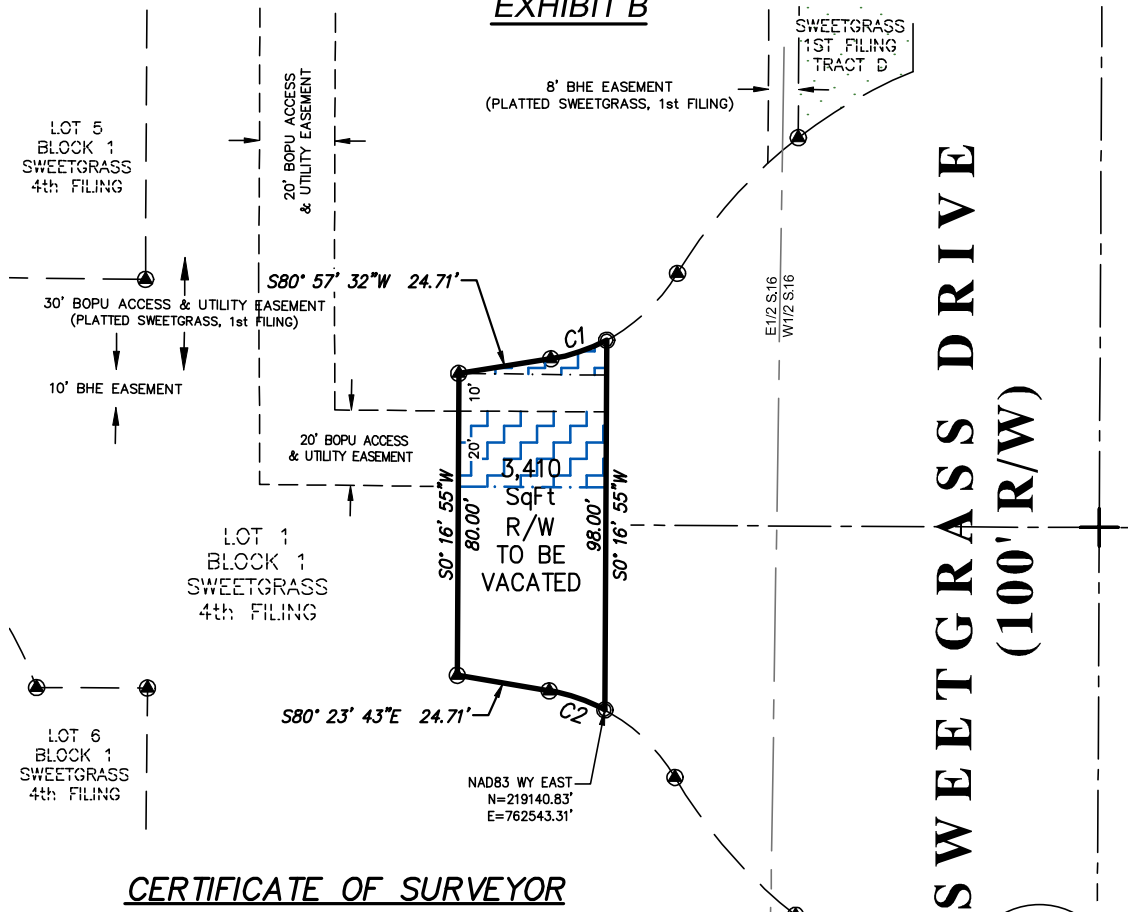
Machel Allen

PRINT NAME

Equipoise LLC Manager

TITLE

EXHIBIT B



CERTIFICATE OF SURVEYOR

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PREPARED January, 2022

